



ARIZONA HOUSE OF REPRESENTATIVES
FLOOR AMENDMENT EXPLANATION
57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2379: school district governing boards; training

GROSS FLOOR AMENDMENT

1. Specifies each school district governing board (governing board) member must undergo *a total of at least eight hours of instruction on school finance*, including how the specified topics relate to school finance.
2. Sets October 1 as the date by which each governing board member must notify the county school superintendent that they completed the required training.
3. Requires, by November 1, each county school superintendent to:
 - a. compile the notifications received from the governing board members; and
 - b. submit a report to the State Board of Education (SBE) that indicates whether each governing board member completed the required training.
4. Instructs SBE to submit a compiled report to specified individuals by December 1 that indicates whether each governing board member completed the required training.
5. Removes language that makes a governing board member ineligible to be a candidate for nomination, election or appointment to any governing board if the county school superintendent determines the governing board member has failed to complete the required training.
6. Makes a governing board member who fails to complete the required training ineligible to be a candidate for nomination, election or appointment to any governing board if they:
 - a. were not appointed during the current term; and
 - b. are a member of the governing board of a school district that is identified by the Auditor General (OAG) as one of the highest risk school districts.
7. Removes the requirement for the Arizona Department of Education (ADE) to consult with the OAG when developing the training program.
8. Allows ADE, if the OAG disapproves an ADE training program, to submit the training program to the Joint Legislative Audit Committee (JLAC) for review and approval.
9. Requires JLAC to hear and approve or disapprove the training program at its first regular meeting after the training program is submitted.
10. Allows ADE to provide the training program to any governing board member without approval from the OAG if JLAC approves the training program by a majority vote.

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2379
(Reference to EDUCATION Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-302, Arizona Revised Statutes, is amended to
3 read:

4 15-302. Powers and duties

5 A. The county school superintendent shall:

6 1. Distribute all laws, reports, circulars, instructions and forms
7 that the county school superintendent may receive for the use of school
8 officers.

9 2. Record all official acts.

10 3. Appoint governing board members of school districts to fill all
11 vacancies, but the term of the appointment shall be until the next regular
12 election for governing board members, at which time a successor shall be
13 elected to serve the unexpired portion of the term. ~~A person who is~~
14 ~~subject to registration as a sex offender in this state or in any other~~

1 ~~jurisdiction is ineligible for appointment under this paragraph.~~ Within
2 thirty days after notification of a vacancy, the school district governing
3 board may submit up to three names to the county school superintendent for
4 consideration of an appointment to fill the vacancy. The county school
5 superintendent is not required to appoint a governing board member from
6 the list of names submitted by the governing board. The county school
7 superintendent, if the county school superintendent deems it in the best
8 interest of the community, may call a special election to fill the
9 vacancies. If an election is called, the newly elected member shall serve
10 for the remainder of the unexpired portion of the term. A PERSON IS
11 INELIGIBLE FOR APPOINTMENT UNDER THIS PARAGRAPH IF EITHER OF THE FOLLOWING
12 APPLIES:

13 (a) THE PERSON IS SUBJECT TO REGISTRATION AS A SEX OFFENDER IN THIS
14 STATE OR IN ANY OTHER JURISDICTION.

15 (b) THE PERSON IS INELIGIBLE TO BE A CANDIDATE FOR APPOINTMENT TO
16 THE OFFICE OF SCHOOL DISTRICT GOVERNING BOARD MEMBER PURSUANT TO SECTION
17 15-349, SUBSECTION E.

18 4. Make reports, when directed by the superintendent of public
19 instruction, showing matters relating to schools in the county as may be
20 required on the forms furnished by the superintendent of public
21 instruction.

22 5. Have such powers and perform such duties as otherwise prescribed
23 by law.

24 6. On or before October 1 of each year, report to the
25 superintendent of public instruction the amount of monies received from
26 state school funds, special school district taxes and other sources, the
27 total expenditures for school purposes and the balance on hand to the
28 credit of each school district at the close of the school year.

29 7. Contract with the board of supervisors for the board of
30 supervisors to conduct all regular school district elections.

31 8. Be responsible, in cooperation with the school district
32 governing boards and the board of supervisors, for all special school
33 district elections.

34 9. Maintain teacher and administrator certification records of
35 effective dates and expiration dates of teachers' and administrators'
36 certificates in compliance with guidelines prescribed in the uniform
37 system of financial records for those school districts for which the
38 county school superintendent is the fiscal agent. The county school
39 superintendent shall not draw a warrant in payment of a teacher's,
40 substitute teacher's or administrator's salary unless the teacher,
41 substitute teacher or administrator is legally certified during the fiscal
42 year in which the term for payment is demanded.

43 10. Notify a school district three years before the expiration of a
44 revenue control limit override that the school district's budget must be
45 adjusted in the final two years of the override pursuant to section
46 15-481, subsections P and Q, if the voters do not approve another
47 override.

1 11. In collaboration with the department of education and other
2 state agencies, assist school districts, charter schools, county free
3 library districts, municipal libraries, nonprofit and public libraries,
4 tribal libraries, private schools and tribal schools on using student
5 data, staff development, curriculum alignment and technology to improve
6 student performance.

7 12. Assist schools in meeting yearly adequate progress goals as
8 defined by criteria established by the state board of education and
9 implemented by the department of education.

10 B. At the request of school districts and charter schools, the
11 county school superintendent may provide discretionary programs in
12 addition to the programs prescribed in subsection A of this section.

13 C. The county school superintendent may:

14 1. Provide the services prescribed in subsections A and B of this
15 section in the county or jointly with two or more counties pursuant to
16 title 11, chapter 7, article 3.

17 2. Review the operations and finances, including expenditures, of
18 any school district that is located in the county.

19 D. Each county school superintendent may establish an advisory
20 committee to the office of the county school superintendent.

21 Sec. 2. Title 15, chapter 3, article 3, Arizona Revised Statutes,
22 is amended by adding section 15-349, to read:

23 15-349. Governing board members; biennial training
24 requirements; annual reports; ineligibility;
25 auditor general approval; joint legislative audit
26 committee hearing and approval

27 A. AT LEAST ONCE IN EVERY TWO-YEAR PERIOD, EACH GOVERNING BOARD
28 MEMBER OF EACH SCHOOL DISTRICT IN THIS STATE SHALL COMPLETE A TRAINING
29 PROGRAM THAT INCLUDES {{A TOTAL OF AT LEAST EIGHT HOURS OF}} INSTRUCTION
30 ON {{SCHOOL FINANCE, INCLUDING HOW}} ALL OF THE FOLLOWING TOPICS {{RELATE
31 TO SCHOOL FINANCE}}:

- 32 1. SCHOOL DISTRICT GOVERNANCE.
- 33 2. THE FIDUCIARY DUTIES OF SCHOOL DISTRICT GOVERNING BOARD MEMBERS.
- 34 3. HOW TO DEVELOP, ADOPT AND IMPLEMENT SCHOOL DISTRICT GOVERNING
35 BOARD POLICIES.
- 36 4. COMMUNITY ENGAGEMENT AND COLLABORATION WITH STAKEHOLDERS.
- 37 5. STUDENT OUTCOME-FOCUSED SCHOOL DISTRICT GOVERNANCE.
- 38 6. THE LEGAL AND ETHICAL RESPONSIBILITIES OF SCHOOL DISTRICT
39 GOVERNING BOARD MEMBERS.
- 40 7. ANY OTHER PROFESSIONAL DEVELOPMENT TOPICS THAT ARE RELEVANT TO
41 SERVICE AS A SCHOOL DISTRICT GOVERNING BOARD MEMBER.

42 [~~C.~~] [B.] [~~A~~] [~~THE~~] COUNTY SCHOOL SUPERINTENDENT [~~MAY~~] [~~OF THE~~
43 COUNTY IN WHICH A SCHOOL DISTRICT IS LOCATED OR, IF A SCHOOL DISTRICT IS
44 LOCATED IN MORE THAN ONE COUNTY, THE COUNTY SCHOOL SUPERINTENDENT OF THE
45 COUNTY IN WHICH A GOVERNING BOARD MEMBER RESIDES SHALL] PROVIDE A TRAINING
46 PROGRAM THAT IS APPROVED BY THE AUDITOR GENERAL AND THAT MEETS THE
47 REQUIREMENTS PRESCRIBED BY SUBSECTION A OF THIS SECTION FOR [THE SCHOOL

1 ~~DISTRICT]~~ GOVERNING BOARD MEMBERS ~~[OF ANY SCHOOL DISTRICT IN THIS STATE].~~
2 ~~[A COUNTY SCHOOL SUPERINTENDENT MAY ENTER INTO AN INTERGOVERNMENTAL~~
3 ~~AGREEMENT OR CONTRACT WITH ANOTHER COUNTY SCHOOL SUPERINTENDENT TO PROVIDE~~
4 ~~THE TRAINING PROGRAM THROUGH THE OTHER COUNTY SCHOOL SUPERINTENDENT'S~~
5 ~~OFFICE.]~~

6 ~~[B.] [C.] ON {{COMPLETING THE TRAINING REQUIRED BY SUBSECTION A OF~~
7 ~~THIS SECTION}}~~ ~~{{OR BEFORE OCTOBER 1, 2027 AND EVERY SECOND YEAR~~
8 ~~THEREAFTER}}}, EACH SCHOOL DISTRICT GOVERNING BOARD MEMBER SHALL NOTIFY THE~~
9 ~~COUNTY SCHOOL SUPERINTENDENT OF THE COUNTY IN WHICH THE SCHOOL DISTRICT IS~~
10 ~~LOCATED THE DATE ON WHICH THE GOVERNING BOARD MEMBER COMPLETED THE~~
11 ~~TRAINING. IF THE SCHOOL DISTRICT IS LOCATED IN MORE THAN ONE COUNTY, THE~~
12 ~~GOVERNING BOARD MEMBER MAY NOTIFY THE COUNTY SCHOOL SUPERINTENDENT OF THE~~
13 ~~COUNTY IN WHICH THE GOVERNING BOARD MEMBER RESIDES. {{ON OR BEFORE~~
14 ~~NOVEMBER 1, 2027 AND EVERY SECOND YEAR THEREAFTER, EACH COUNTY SCHOOL~~
15 ~~SUPERINTENDENT SHALL COMPILE THE NOTIFICATIONS RECEIVED PURSUANT TO THIS~~
16 ~~SUBSECTION AND SUBMIT A REPORT TO THE STATE BOARD OF EDUCATION THAT~~
17 ~~INDICATES WHETHER EACH SCHOOL DISTRICT GOVERNING BOARD MEMBER COMPLETED~~
18 ~~THE TRAINING. THE STATE BOARD OF EDUCATION SHALL COMPILE THE REPORTS~~
19 ~~RECEIVED PURSUANT TO THIS SUBSECTION AND, ON OR BEFORE DECEMBER 1, 2027~~
20 ~~AND EVERY SECOND YEAR THEREAFTER, SHALL SUBMIT A REPORT TO THE GOVERNOR,~~
21 ~~THE PRESIDENT OF THE SENATE, THE SPEAKER OF THE HOUSE OF REPRESENTATIVES,~~
22 ~~THE OFFICE OF THE AUDITOR GENERAL AND THE SUPERINTENDENT OF PUBLIC~~
23 ~~INSTRUCTION THAT INDICATES WHETHER EACH SCHOOL DISTRICT GOVERNING BOARD~~
24 ~~MEMBER COMPLETED THE TRAINING.}}~~

25 D. THE DEPARTMENT OF EDUCATION SHALL PROVIDE A TRAINING PROGRAM
26 THAT IS APPROVED BY THE AUDITOR GENERAL AND THAT MEETS THE REQUIREMENTS
27 PRESCRIBED BY SUBSECTION A OF THIS SECTION FOR EACH SCHOOL DISTRICT
28 GOVERNING BOARD MEMBER WHO HAS NOT COMPLETED A TRAINING PROGRAM THAT IS
29 ~~[OFFERED]~~ ~~[PROVIDED]~~ BY A COUNTY SCHOOL SUPERINTENDENT PURSUANT TO
30 SUBSECTION ~~[e]~~ ~~[B]~~ OF THIS SECTION DURING THE CURRENT TWO-YEAR PERIOD.
31 THE DEPARTMENT MAY CHARGE EACH SCHOOL DISTRICT FOR THE COST OF PROVIDING
32 THE TRAINING PROGRAM TO THE SCHOOL DISTRICT'S GOVERNING BOARD MEMBERS
33 PURSUANT TO THIS SUBSECTION. EACH SCHOOL DISTRICT SHALL PAY FOR ANY COSTS
34 INCURRED BY THE DEPARTMENT TO PROVIDE THE TRAINING TO THE SCHOOL
35 DISTRICT'S GOVERNING BOARD MEMBERS.

36 E. ~~{{IF A GOVERNING BOARD MEMBER FAILS TO NOTIFY THE COUNTY SCHOOL~~
37 ~~SUPERINTENDENT PURSUANT TO SUBSECTION [B] [C] OF THIS SECTION AND THAT~~
38 ~~COUNTY SCHOOL SUPERINTENDENT DETERMINES THAT THE}}~~ ~~{{A}}~~ GOVERNING BOARD
39 MEMBER ~~{{HAS FAILED}}~~ ~~{{WHO FAILS}}~~ TO COMPLETE THE TRAINING REQUIRED BY
40 SUBSECTION A OF THIS SECTION~~{{, THE GOVERNING BOARD MEMBER}}~~ IS INELIGIBLE
41 TO BE A CANDIDATE FOR NOMINATION, ELECTION OR APPOINTMENT TO THE OFFICE OF
42 GOVERNING BOARD MEMBER IN ANY SCHOOL DISTRICT IN THIS STATE ~~{{IF THE~~
43 ~~SCHOOL DISTRICT GOVERNING BOARD MEMBER BOTH:~~

44 1. ~~WAS NOT APPOINTED TO THE OFFICE OF GOVERNING BOARD MEMBER DURING~~
45 ~~THE CURRENT TERM.~~

1 2. IS A MEMBER OF THE SCHOOL DISTRICT GOVERNING BOARD OF A SCHOOL
2 DISTRICT THAT IS IDENTIFIED BY THE AUDITOR GENERAL AS ONE OF THE HIGHEST
3 RISK SCHOOL DISTRICTS IN THIS STATE}}.

4 F. THE DEPARTMENT OF EDUCATION AND EACH COUNTY SCHOOL
5 SUPERINTENDENT WHO PROVIDES A TRAINING PROGRAM PURSUANT TO SUBSECTION [e]
6 [B] OF THIS SECTION ~~{{SHALL CONSULT WITH THE AUDITOR GENERAL WHEN~~
7 ~~DEVELOPING THE TRAINING PROGRAM AND}}~~ SHALL SUBMIT THE TRAINING PROGRAM TO
8 THE AUDITOR GENERAL, IN A FORM AND MANNER PRESCRIBED BY THE AUDITOR
9 GENERAL, FOR APPROVAL BEFORE PROVIDING THE TRAINING PROGRAM TO ANY
10 GOVERNING BOARD MEMBER. {{IF THE AUDITOR GENERAL DISAPPROVES A TRAINING
11 PROGRAM SUBMITTED PURSUANT TO THIS SUBSECTION, THE DEPARTMENT MAY SUBMIT
12 THE TRAINING PROGRAM TO THE JOINT LEGISLATIVE AUDIT COMMITTEE FOR REVIEW
13 AND APPROVAL. THE JOINT LEGISLATIVE AUDIT COMMITTEE MUST HEAR AND APPROVE
14 OR DISAPPROVE THE TRAINING PROGRAM AT THE FIRST REGULAR MEETING AFTER THE
15 PROGRAM IS SUBMITTED PURSUANT TO THIS SUBSECTION. IF THE JOINT
16 LEGISLATIVE AUDIT COMMITTEE APPROVES THE TRAINING PROGRAM BY A MAJORITY
17 VOTE, THE DEPARTMENT MAY PROVIDE THE TRAINING PROGRAM TO ANY GOVERNING
18 BOARD MEMBER WITHOUT APPROVAL FROM THE AUDITOR GENERAL.}}

19 Sec. 3. Section 15-421, Arizona Revised Statutes, is amended to
20 read:

21 15-421. Governing boards; members; qualifications;
22 prohibitions; candidate statements; definitions

23 A. The governing body of a school district shall be a governing
24 board. There shall be three governing board members, except as otherwise
25 provided by this section and section 15-425, subsection A.

26 B. The governing body of a high school district shall be a
27 governing board composed of:

28 1. In a single district, the governing board members of the common
29 school district.

30 2. In a union high school district, five members.

31 C. A person is eligible for election to the office of governing
32 board member if all of the following apply:

33 1. The person is a registered voter of this state.

34 2. The person has been a resident of the school district for at
35 least one year immediately preceding the day of election.

36 3. The person is not subject to registration as a sex offender in
37 this state or in any other jurisdiction.

38 4. THE PERSON IS NOT INELIGIBLE TO BE A CANDIDATE FOR NOMINATION OR
39 ELECTION TO THE OFFICE OF GOVERNING BOARD MEMBER PURSUANT TO SECTION
40 15-349, SUBSECTION E.

41 D. An employee of a school district, including a person who
42 directly provides certified or classified services to the school district
43 as an employee of a third-party contractor, or the spouse of such an
44 employee may not hold membership on the governing board of a school
45 district by which the employee is employed.

46 E. Notwithstanding subsection D of this section and title 38,
47 chapter 3, article 8, a small school district may employ, including

1 employment through a third-party contractor that provides services to the
2 small school district, a substitute teacher who is related to a member of
3 the governing board as immediate family and who has had the same household
4 of residence within the preceding four years. If a small school district
5 employs a substitute teacher pursuant to this subsection, the member of
6 the governing board who is related to the substitute teacher shall be
7 recused from voting on any matter relating to substitute teachers.

8 F. A school district may employ, including employment through a
9 third-party contractor that provides services to the school district, a
10 person who served as a member of the school district's governing board
11 during the preceding two years only in a position in which the person will
12 provide services directly to students, including as a certificated
13 teacher, a substitute teacher and an employee or contractor who provides
14 transportation, instructional support or student support services. A
15 school district may increase the time period prescribed in this subsection
16 to be more than two years.

17 G. A member of one governing board is ineligible to be a candidate
18 for nomination or election to or serve simultaneously as a member of any
19 other governing board, except that a member of a governing board may be a
20 candidate for nomination or election for any other governing board if the
21 member is serving in the last year of a term of office. A member of a
22 governing board shall resign the member's seat on the governing board
23 before becoming a candidate for nomination or election to the governing
24 board of any other school district, unless the member of the governing
25 board is serving in the last year of a term of office.

26 H. Notwithstanding section 15-511, each county school
27 superintendent shall publish on the superintendent's website the statement
28 of each certified candidate for membership on a school district governing
29 board located in the county. The county school superintendent shall list
30 each school district on the superintendent's website from which a link
31 shall be established to the candidate's name, which shall link to the
32 candidate's statement and photograph. The candidate shall submit the
33 statement to the person at the county school superintendent's office
34 assigned to manage candidate statements, after notice of certification
35 from the county school superintendent's office but not later than
36 twenty-one days before the date that general election early ballots are
37 allowed to be mailed. The person shall post each candidate's statement on
38 the county school superintendent's website not later than fourteen days
39 before the date that general election early ballots are allowed to be
40 mailed. If a candidate does not submit a statement, the county school
41 superintendent's website shall state "no response submitted" for the
42 candidate. The candidate statements shall be posted on the website
43 alphabetically by each school district and by candidate. The candidate
44 statement shall be typewritten or electronically submitted. The county
45 school superintendent shall post the statements verbatim as they are
46 received unless a candidate requests in writing that typographical errors

1 be corrected. The candidate statement shall contain the following items
2 in the same size and format for each candidate:

3 1. A recent photograph of the candidate.

4 2. A statement not to exceed five hundred words.

5 3. A disclosure of any relationships by affinity, by consanguinity
6 or by law to the third degree that exist between the candidate and any
7 current governing board members or other candidates for election to the
8 same governing board.

9 I. Persons related as immediate family who have the same household
10 of residence within four years prior shall not serve simultaneously on the
11 governing board of the same school district if the governing board is
12 composed of five members. For a school district with a student count of
13 at least two hundred fifty that is located in a county with a population
14 of more than five hundred thousand persons, not more than two persons
15 related by affinity, by consanguinity or by law to the third degree shall
16 serve simultaneously on the governing board of the same school district if
17 the governing board is composed of five members. A qualified elector who
18 resides in the school district may bring an action in superior court to
19 enforce this subsection.

20 J. A person related as immediate family who has the same household
21 of residence within four years prior to a member of the governing board of
22 the same school district is ineligible to be a candidate for nomination or
23 election to that governing board if the governing board is composed of
24 five members, except that a person related as immediate family who has the
25 same household of residence within four years prior to a member of a
26 governing board may be a candidate for nomination or election to the
27 governing board of the same school district if the member is serving in
28 the last year of a term of office. For a school district with a student
29 count of at least two hundred fifty that is located in a county with a
30 population of more than five hundred thousand persons, not more than two
31 persons related by affinity, by consanguinity or by law to the third
32 degree shall be eligible to be a candidate for nomination or election to a
33 governing board that is composed of five members. A qualified elector who
34 resides in the school district may bring an action in superior court to
35 enforce this subsection.

36 K. Persons related as immediate family who have the same household
37 of residence within four years prior are ineligible to be simultaneous
38 candidates for nomination or election to the governing board of the same
39 school district if the governing board is composed of five members. For a
40 school district with a student count of at least two hundred fifty that is
41 located in a county with a population of more than five hundred thousand
42 persons, not more than two persons related by affinity, by consanguinity
43 or by law to the third degree shall be simultaneous candidates for
44 nomination or election to a governing board that is composed of five
45 members. A qualified elector who resides in the school district may bring
46 an action in superior court to enforce this subsection.

47 L. For the purposes of this section:

1 1. "Household of residence" means the place of abode during
2 applicable time periods or the residence address used by an individual for
3 voter registration or property tax purposes.

4 2. "Immediate family" means individuals who are married to each
5 other and any children of those individuals.

6 3. "Small school district" has the same meaning prescribed in
7 section 15-901.

8 Enroll and engross to conform

9 Amend title to conform

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